

Settlement and Land Acts in Quebec

A Civil Law Perspective for the Settlor

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The Settlement and Land Acts in Quebec don't operate the same way as in other Canadian provinces. Quebec follows the **Civil Code of Québec (CCQ)** rather than English common law. What people usually mean by "settlement" in Quebec law relates to property transfers, trusts, usufructs, substitutions, or estate planning arrangements rather than a distinct "settled land act" statute like in older British law.

THE ROLE OF THE SETTLOR (CONSTITUENT) IN QUEBEC CIVIL LAW

In Quebec civil law, the closest equivalent to a "settlor" is the **constituent of a trust (constituant)**. Under the Civil Code, a trust creates a **separate patrimony by appropriation** — meaning the property is no longer owned by the settlor personally, but is administered by trustees for beneficiaries.

The settlor generally cannot simply "take back" the property unless the trust deed specifically reserves that right. The concept of "reversion" exists in civil law more in the form of a **substitution** or through conditions written into the act of donation.

TERMINATION OF A TRUST

Termination depends entirely on the type of legal arrangement. A trust can end when:

- Its **term expires**;
- Its **purpose is fulfilled** or becomes impossible;
- **All beneficiaries consent** (in certain conditions); or
- A **court orders termination**.

If the trust instrument includes a clause allowing **revocation by the settlor**, then termination may occur without court involvement, provided all legal formalities are respected.

IS A JUDGE REQUIRED?

Whether a judge is required depends on the situation. If the act clearly allows revocation and all parties agree, it may be handled through a **notary** without going before a judge. However, if there is disagreement between beneficiaries, ambiguity in the deed, incapacity of a party, or protected beneficiaries (like minors), court authorization may be necessary.

IMPORTANT NOTICE

If you're dealing with a specific instrument (notarial trust, donation with conditions, or substitution clause), the **exact wording controls**. Before attempting termination, review the original deed carefully — preferably with a notary or lawyer — because acting outside the terms of the Civil Code could make the termination **invalid**.

⚠ **Legal Disclaimer:** This document is for informational purposes only and does not constitute legal advice. Always consult a qualified notary or lawyer licensed in Quebec.